

law

MBA · meerut university
Based on 4 year(s) of previous papers

Topic Priority Overview

Topic	Priority	Confidence	Freq	Marks
Offer: how an offer is made	High	Medium	2×	3-7.5 marks
Acceptance: revocation and time limits	Medium	Medium	2×	7.5-15 marks
Consideration: definition and unlawful consideration	High	High	3×	3-7.5 marks
Contract: definition and essentials of a valid contract	High	High	4×	15 marks (often asked as long/detailed)
Quasi-Contract: definition and salient features	Medium	Medium	3×	7.5 marks
Void Contract: reasons and examples	Medium	Medium	2×	3-7.5 marks
Contingent Contract: definition and enforcement rules	Medium	Medium	2×	15 marks
Bailment: definition and essential elements	High	High	3×	15 marks
Pledge: definition and differences from bailment	Medium	Medium	2×	7.5-15 marks
Contract of Guarantee: definition and illustration	High	High	3×	7.5-15 marks
Contract of Indemnity: definition and important features	Medium	Medium	2×	15 marks
Performance of Contract: meaning and scope	Low	Low	1×	7.5 marks
Sale of Goods: 'condition' vs 'warranty' and implied conditions	High	High	3×	15 marks
Goods under Sale of Goods Act: definition & classification	Medium	Medium	2×	3-7.5 marks
Unpaid Seller: definition and rights	Medium	Medium	2×	7.5 marks
Negotiable Instrument: definition and characteristics	High	High	3×	7.5-15 marks
Holder in Due Course: rights of holder in due course	Medium	Medium	2×	7.5 marks
Cheque: definition and distinction from Bill of Exchange	Medium	Medium	2×	7.5-15 marks

Promissory Note: definition and parties to promissory note	Low	Low	1×	3-7.5 marks
Negotiation: meaning and difference from Assignment	Low	Low	1×	3 marks
Caveat Emptor: meaning and exceptions	Low	Low	1×	3 marks
Limited Liability Partnership: definition, eligibility & relationship of partners	High	High	4×	7.5-15 marks
Rights of unpaid seller vs exceptions to seller giving better title	Low	Low	1×	15 marks
Cheque v Bill of Exchange: practical difference and examples	Low	Low	1×	7.5-15 marks
Promissory Instruments cluster: parties and inter-relations (cheque, bill, promissory note)	Medium	Medium	3×	Combined 15-30 marks across papers
Caveat Emptor: exceptions	Low	Medium	1×	3 marks
Negotiation vs Assignment	Low	Medium	1×	3 marks
Promissory Note: parties	Low	High	1×	3-7.5 marks
Bailment: essential elements	High	High	3×	15 marks
Contingent Contract: enforcement rules	Medium	High	2×	15 marks
Condition vs Warranty & implied conditions in sale of goods	High	High	3×	15 marks
Limited Liability Partnership: eligibility & relationship	High	High	3×	7.5-15 marks
Cheque vs Bill of Exchange	Medium	High	2×	7.5-15 marks
Definition of Law and Indian Contract Act	High	High	1×	3 marks
Essentials / Characteristics of a valid contract	High	High	2×	15 marks
Quasi-Contract: definition & features	Medium	Medium	2×	7.5 marks
Pledge vs Bailment	Medium	High	2×	7.5 marks
Holder in Due Course rights (negotiable instruments)	High	High	2×	7.5 marks
Offer: formation	High	High	2×	3-7.5 marks
Consideration: unlawful consideration	High	High	3×	3-7.5 marks

Detailed Study Notes

Read these notes carefully — they're based on actual patterns found in your past papers.

1. Offer: how an offer is made

Medium Conf.

High Priority

Appeared in: Paper 3 · Paper 4 · 2× total

Question types: Short: 2

Kya Padhna Hai:

- 'What do you mean by offer? How an offer is made?'
- Types/ modes by which offer can be communicated (phrases visible in paper asking 'how an offer is made')
- Distinction between proposal and offer as used in questions about formation
- Examples of unilateral vs bilateral offers as implied by 'how an offer is made'
- Situations where offer lapses (as tied to revocation/acceptance questions)

Kaise Poochha Jaata Hai:

Seedha definition + short explanation: 'What do you mean by offer? How an offer is made?' — expect 75-200 word answers.

Repeat Pattern:

Paper 3 and Paper 4 dono mein similar short-definition + explanation format repeated.

Key Terms:

offer

formation

communication of offer

2. Consideration: definition and unlawful consideration

High Conf.

High Priority

Appeared in: Paper 2 · Paper 3 · Paper 4 · 3× total

Question types: Short: 3

Kya Padhna Hai:

- 'What is consideration? When the consideration is unlawful?'
- Precise definition of consideration under Indian Contract Act
- Grounds that make consideration unlawful (e.g., forbidden by law, immoral, fraudulent)
- Examples/scenarios where consideration is illegal as per question wording
- Distinction between past, present, future consideration as implied by standard short questions

Kaise Poochha Jaata Hai:

Short-answer definition followed by listing and explaining grounds of unlawfulness in 75-200 words.

Repeat Pattern:

Appears in Paper 3 and conceptually in questions about essentials of contract across papers; consistent short-answer style.

Key Terms:

consideration

unlawful consideration

past consideration

3. Contract: definition and essentials of a valid contract

High Conf.

High Priority

Appeared in: Paper 2 · Paper 3 · Paper 4 · Paper 1 · 4× total

Question types: Short: 1 | Long: 3

Kya Padhna Hai:

- 'What is a contract? Explain in brief the essential elements of a valid contract.'
- List and explain essential elements: offer, acceptance, consideration, capacity, free consent, legality of object, certainty
- Examples or scenario distinctions (e.g., void/voidable) as asked in 'When does an agreement become a contract?'
- Interaction with Indian Contract Act and whether Act is adequate (Paper 2 asks this explicitly)

Kaise Poochha Jaata Hai:

Both short and long formats: definition + list of essentials; sometimes followed by analysis ('Is this Act Adequate?'). Expect 200+ word discussion for long questions.

Repeat Pattern:

Every paper tests definition and essentials — highly consistent across years.

Key Terms:

offer

acceptance

consideration

capacity

4. Bailment: definition and essential elements

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 4 · 3× total

Question types: Short: 1 | Long: 2

Kya Padhna Hai:

- 'Define Bailment and discuss the essential elements of a contract of Bailment.'
- Elements: delivery of goods, possession without transfer of ownership, purpose, return obligation
- Types of bailment (actual custody, constructive) as implied by essential element discussions
- Distinction from pledge (Paper 2 asks 'Define pledge. How does it differ from bailment?')
- Rights and duties of bailor and bailee when asked in long answers

Kaise Poochha Jaata Hai:

Long-answer format (15 marks) explaining definition + list and application/examples; also short compare-with-pledge question appears.

Repeat Pattern:

Regularly appears in Section-C or as a 15-mark question (Papers 1,2,4).

Key Terms:

bailment

delivery

possession

5. Contract of Guarantee: definition and illustration

High Conf.

High Priority

Appeared in: Paper 2 · Paper 3 · Paper 4 · 3× total

Question types: Short: 3 | Long: 1

Kya Padhna Hai:

- 'What is contract of Guarantee?' and 'What is contract of guarantee? Illustrate with example.'
- Definition of guarantee, parties (creditor, principal debtor, surety)
- Rights and liabilities of surety, discharge of surety
- Examples/illustrations as requested in Paper 2

Kaise Poochha Jaata Hai:

Short-answer definition plus an illustrative example; sometimes expanded to feature discussion.

Repeat Pattern:

Consistently asked as a stand-alone short question across papers.

Key Terms:

guarantee

surety

principal debtor

6. Sale of Goods: 'condition' vs 'warranty' and implied conditions

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 4 · 3× total

Question types: Short: 2 | Long: 2

Kya Padhna Hai:

- 'Distinguish between 'condition' and 'warranty.' What are the implied conditions in a Contract of sale of goods?'
- Formal definitions of condition and warranty under Sale of Goods Act
- List of implied conditions (title, description, merchantability, fitness for purpose) as asked
- Examples showing breach consequences (repudiation vs damages)
- Judicial or statutory illustrations if required by answer

Kaise Poochha Jaata Hai:

Either short distinction or long answer with list of implied conditions and examples; appears in both Section-B and Section-C formats.

Repeat Pattern:

Repeated exact phrasing in Paper 1 and Paper 3 and tested as long question in Paper 1.

Key Terms:

condition

warranty

implied conditions

7. Negotiable Instrument: definition and characteristics

High Conf.

High Priority

Appeared in: Paper 4 · Paper 2 · Paper 1 · 3× total

Question types: Short: 3 | Long: 1

Kya Padhna Hai:

- 'Define the term Negotiable Instrument. Explain the characteristics of a Negotiable Instrument.'
- Statutory definition and four essential characteristics (transferability, negotiability, title by holder in due course, etc.)
- Types: cheque, bill of exchange, promissory note (as linked in papers)
- Examples where characteristics affect rights (holder in due course question in Paper 2)

Kaise Poochha Jaata Hai:

Short definition + list/explanation of characteristics; sometimes tied to rights of holder in due course.

Repeat Pattern:

Multiple papers ask definition and characteristics; consistent format.

Key Terms:

negotiable instrument

transferability

holder in due course

8. Limited Liability Partnership: definition, eligibility & relationship of partners

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 4 · Paper 3 · 4× total

Question types: Short: 4 | Long: 1

Kya Padhna Hai:

- 'Define Limited Liability Partnership. Define Eligibility to be Partner and Relationship of Partners.'
- Formal definition of LLP and its legal nature
- Eligibility conditions to be partner (as asked verbatim across papers)
- Nature of relationship among partners: rights, duties, internal governance
- Distinct features comparing LLP with partnership/company when implied

Kaise Poochha Jaata Hai:

Short definition plus enumerated points on eligibility & relationship; repeated exact phrasing in several papers.

Repeat Pattern:

Same question wording appears in Papers 1,2 and Paper 4 — very consistent.

Key Terms:

LLP

eligibility

relationship of partners

9. Bailment: essential elements

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 4 · 3× total

Question types: Short: 1 | Long: 2

Kya Padhna Hai:

- Precise definition of bailment and the essential elements: delivery of goods, possession without transfer of ownership, purpose, return/handling obligation.
- Types of bailment (actual/constructive) briefly and how elements apply.
- Differences from pledge (security) highlighted since papers ask compare questions.
- Prepare a 15-mark answer structure: definition, list of elements with explanation, short example, rights/duties mention.

Kaise Poochha Jaata Hai:

Long-answer question: 'Define Bailment and discuss the essential elements of a contract of Bailment.' — expect 200+ words with statutory-style points and an illustrative example.

Repeat Pattern:

Repeated across Papers 1, 2, and 4 in long-answer slots.

Key Terms:

bailment

delivery

possession

purpose

10. Condition vs Warranty & implied conditions in sale of goods

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 4 · 3× total

Question types: Short: 2 | Long: 2

Kya Padhna Hai:

- Definitions of 'condition' and 'warranty' under the Sale of Goods Act and the legal consequences of breach (repudiation vs damages).
- Memorize implied conditions: title, correspondence with description, merchantability/fitness for purpose (where applicable), sale by sample.
- Prepare a sample 15-mark answer: definition, table of differences, list of implied conditions with brief examples, case notes if needed.
- Link to caveat emptor exceptions where relevant (helps in combined answers).

Kaise Poochha Jaata Hai:

Direct question: 'Distinguish between condition and warranty. What are the implied conditions in a Contract of sale of goods?' — expect definition + list + examples.

Repeat Pattern:

Appears verbatim in Paper 1 and Paper 3; common long/short formats.

Key Terms:

condition

warranty

implied conditions

Sale of Goods Act

II. Limited Liability Partnership: eligibility & relationship

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 4 · 3× total

Question types: Short: 3 | Long: 1

Kya Padhna Hai:

- Definition of Limited Liability Partnership (LLP) and its basic legal nature.
- Eligibility criteria to be a partner (as asked verbatim in multiple papers) and rights/duties/relationship among partners.
- Prepare 3–4 pointwise duties and rights and one short example contrasting LLP with partnership/company where useful.
- Keep a 75–200 word template ready for short answers and an expanded 200+ word version for longer questions.

Kaise Poochha Jaata Hai:

Short-definition plus enumerated eligibility and relationship points; repeated across Papers 1, 2 and 4 in identical phrasing.

Repeat Pattern:

Very consistently asked; memorize statutory definition and 4–5 eligibility/relationship points.

Key Terms:

LLP

eligibility

relationship of partners

12. Definition of Law and Indian Contract Act

High Conf.

High Priority

Appeared in: Paper 2 · 1× total

Question types: Short: 1 | Long: 0

Kya Padhna Hai:

- Succinct definition of 'law' (general concept) and introduction to the Indian Contract Act (scope & purpose).
- Be ready to state what the Indian Contract Act covers (formation, performance, breach, remedies) in 2–3 lines.
- Prepare a 2–3 sentence answer distinguishing common law concept of contract and statutory codification under the Indian Contract Act.

Kaise Poochha Jaata Hai:

Direct short-answer: 'What is law?' and 'What do you understand by Indian Contract Act?' — concise definitional response expected.

Repeat Pattern:

Appears in Paper 2 Section-A as basic definitional questions.

Key Terms:

law

Indian Contract Act

definition

13. Essentials / Characteristics of a valid contract

High Conf.

High Priority

Appeared in: Paper 2 · Paper 4 · 2× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- Memorize essentials: offer, acceptance, lawful consideration, capacity, free consent, lawful object, certainty, possibility of performance, not declared void.
- Be prepared to explain each essential in 2–3 lines and give a short illustration for one or two essentials.
- Prepare a 15-mark answer layout: definition, list of essentials with brief explanation, short example(s), conclusion.

Kaise Poochha Jaata Hai:

Often asked as 'State in brief the main characteristics of a contract' or 'Explain essential elements of a valid contract' — ready both short and expanded versions.

Repeat Pattern:

Frequent across Papers 2 and 4; core syllabus topic.

Key Terms:

offer

acceptance

consideration

capacity

14. Holder in Due Course rights (negotiable instruments)

High Conf.

High Priority

Appeared in: Paper 2 · Paper 4 · 2× total

Question types: Short: 2 | Long: 0

Kya Padhna Hai:

- Conditions to qualify as holder in due course (value, good faith, without notice of defect).
- Rights: takes instrument free from defects of title of prior parties, can sue previous parties, protection against certain defenses.
- Examples of loss of HDC status (notice of defect, holder acquires instrument from thief).
- Prepare a concise 5–6 point answer for 7.5-mark questions and an illustrative example.

Kaise Poochha Jaata Hai:

Direct short question: 'What are the rights of a holder in due course of negotiable instrument?' — list and explain rights with qualifying conditions.

Repeat Pattern:

Asked explicitly in Paper 2 and connected to negotiable instrument questions in other papers.

Key Terms:

holder in due course

rights

good faith

15. Offer: formation

High Conf.

High Priority

Appeared in: Paper 3 · Paper 4 · 2× total

Question types: Short: 2 | Long: 0

Kya Padhna Hai:

- Definition of offer and the modes by which an offer can be made (explicit statement, conduct, by post/communication where relevant).
- Essentials of a valid offer (intention, communication, definiteness of terms).
- Situations where an offer lapses (revocation, counter-offer, lapse of time) tying into acceptance questions.
- Prepare a short template answer and 1–2 brief examples.

Kaise Poochha Jaata Hai:

Short-definition and explanation: 'What do you mean by offer? How an offer is made?' — 75–200 words expected.

Repeat Pattern:

Appears in Paper 3 and linked conceptually in Paper 4 acceptance questions.

Key Terms:

offer

formation

communication

16. Consideration: unlawful consideration

High Conf.

High Priority

Appeared in: Paper 2 · Paper 3 · Paper 4 · 3× total

Question types: Short: 3 | Long: 0

Kya Padhna Hai:

- Definition of consideration and the circumstances rendering consideration unlawful: forbidden by law, defeat of law, fraudulent, involves injury to person/property, immoral.
- Distinguish unlawful consideration from void agreements and give a short example for each ground.
- Prepare a short 75–200 word answer listing the grounds with one-line explanation per ground.

Kaise Poochha Jaata Hai:

Short-answer: 'What is consideration? When the consideration is unlawful?' — definition plus enumerated grounds.

Repeat Pattern:

Appears explicitly in Paper 3 and conceptually across papers.

Key Terms:

consideration

unlawful

void agreement

17. Acceptance: revocation and time limits

Medium Conf.

Medium Priority

Appeared in: Paper 4 · Paper 2 · 2× total

Question types: Short: 2 | Long: 1

Kya Padhna Hai:

- 'How can an acceptance be revoked? Is there any limit of time after which an acceptance cannot be revoked.'
- Legal position on revocation before communication and after communication of acceptance
- Time limits or lapse of acceptance in unilateral/conditional offers
- Case/examples where acceptance becomes irrevocable (performance-based acceptances)
- Interaction with postal rule or communication methods if implied by questions

Kaise Poochha Jaata Hai:

Direct short answer asking statutory/illustrative explanation; expect to quote rule and give examples within 75-200 words.

Repeat Pattern:

Seen in Paper 4 explicitly; related acceptance topics reappear in other papers as part of essentials of contract.

Key Terms:

revocation

acceptance

time limit

18. Quasi-Contract: definition and salient features

Medium Conf.

Medium Priority

Appeared in: Paper 2 · Paper 3 · Paper 4 · 3× total

Question types: Short: 3

Kya Padhna Hai:

- 'Quasi contract is not a contract in law.' Explain
- 'Quasi-Contract? Mention its salient features.'
- Elements that constitute quasi-contractual obligations (e.g., obligation by law)
- Typical examples tested in papers (supply of necessities, payment by mistake) as implied by question wording

Kaise Poochha Jaata Hai:

Short answer: definition + list of features with brief explanation, 75-200 words.

Repeat Pattern:

Appears repeatedly in short-answer sections across papers.

Key Terms:

quasi-contract

salient features

obligation by law

19. Void Contract: reasons and examples

Medium Conf.

Medium Priority

Appeared in: Paper 3 · Paper 4 · 2× total

Question types: Short: 2

Kya Padhna Hai:

- 'What is 'Void contract'? Narrate the reasons of a void contract.'
- Specific grounds making contracts void (e.g., unlawful object, impossibility, lack of consideration)
- Difference between void and voidable (papers emphasize reasons)
- Examples from statute or factual scenarios to illustrate each ground

Kaise Poochha Jaata Hai:

Direct short-answer listing reasons with brief explanation; 75-200 words.

Repeat Pattern:

Seen in Paper 3 and Paper 4 as a standard short question.

Key Terms:

void contract

reasons

unlawful object

20. Contingent Contract: definition and enforcement rules

Medium Conf.

Medium Priority

Appeared in: Paper 1 · Paper 4 · 2× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- 'What is Contingent Contract? Explain the rules regarding Enforcement of Contingent Contracts.'
- Definition and classification of contingent contracts
- Rules about when enforceable, void, or become enforceable on happening/non-happening of event
- Examples/scenarios of contingent contracts (as asked for enforcement rules)
- Difference vis-à-vis ordinary executory contracts

Kaise Poochha Jaata Hai:

Long answer: statutory rules + illustrations; 200+ words when asked in Section C.

Repeat Pattern:

Seen explicitly in Paper 1 and Paper 4 in long-answer slots.

Key Terms:

contingent contract

enforcement rules

happening/non-happening of event

21. Pledge: definition and differences from bailment

Medium Conf.

Medium Priority

Appeared in: Paper 2 · Paper 4 · 2× total

Question types: Short: 2

Kya Padhna Hai:

- 'Define pledge. How does it differ from bailment ?'
- Definition of pledge under law and parties involved (pledgor, pledgee)
- Rights and duties of pledgee vs duties of bailee
- Scenarios where pledge arises (security for debt) as paper asks for difference
- Remedies available to pledgee (sale, retention) if implied in questions

Kaise Poochha Jaata Hai:

Short compare-and-contrast question; expect definitions followed by pointwise differences.

Repeat Pattern:

Appears in Paper 2 and conceptually in Paper 4's bailment/pledge questions.

Key Terms:

pledge

pledgee

security

22. Contract of Indemnity: definition and important features

Medium Conf.

Medium Priority

Appeared in: Paper 4 · Paper 2 · 2× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- 'What is Contract of Indemnity? What are its important features?'
- Definition of indemnity and distinguishing indemnity from guarantee
- Features: right to recover loss, nature of indemnity contracts, indemnifier/indemnity-holder
- Typical scenarios/examples where indemnity arises (e.g., insurer-like situations) as the question expects

Kaise Poochha Jaata Hai:

Often a 15-mark short-answer expecting features with explanation and examples.

Repeat Pattern:

Appears in Paper 4's Section B as a 15-mark option; occasional in other papers.

Key Terms:

indemnity

indemnifier

features

23. Goods under Sale of Goods Act: definition & classification

Medium Conf.

Medium Priority

Appeared in: Paper 3 · Paper 1 · 2× total

Question types: Short: 2

Kya Padhna Hai:

- 'Define 'Goods' under Sale of Goods Act 1930. Also give its classification.'
- Statutory definition of 'goods' and items included/excluded
- Classification: existing, future, contingent; specific, ascertained, unascertained
- Examples for each class as expected in short answers
- Distinction between movable goods and other types when relevant

Kaise Poochha Jaata Hai:

Short-answer definition followed by pointwise classification; 75-200 words.

Repeat Pattern:

Seen in Paper 3 and implied in Paper 1's sale of goods questions.

Key Terms:

goods

classification

Sale of Goods Act 1930

24. Unpaid Seller: definition and rights

Medium Conf.

Medium Priority

Appeared in: Paper 4 · Paper 1 · 2× total

Question types: Short: 2

Kya Padhna Hai:

- 'Define an unpaid seller. What are his rights?'
- Definition of unpaid seller (seller unpaid wholly/partly)
- Rights: lien, stoppage in transit, resale, damages
- Conditions for exercising each right (e.g., insolvency of buyer for stoppage in transit)
- Examples of application of these rights as typical short-answer content

Kaise Poochha Jaata Hai:

Short definition + list of rights with brief explanation; appears as 7.5-mark short answer.

Repeat Pattern:

Appears explicitly in Paper 4; sale-related rights also appear in other sale questions.

Key Terms:

unpaid seller

lien

stoppage in transit

25. Holder in Due Course: rights of holder in due course

Medium Conf.

Medium Priority

Appeared in: Paper 2 · Paper 4 · 2× total

Question types: Short: 2

Kya Padhna Hai:

- 'What are the rights of a holder in due course of negotiable instrument?'
- Rights: free from defects in title, can recover amount from prior parties, negotiable protections
- Conditions to qualify as holder in due course (value, good faith, without notice)
- Examples of losing holder in due course status (e.g., notice of defect)

Kaise Poochha Jaata Hai:

Short-answer list of rights with conditions; often 7.5 marks.

Repeat Pattern:

Appears in Paper 2 and linked in Paper 4's negotiable instrument questions.

Key Terms:

holder in due course

rights

good faith

26. Cheque: definition and distinction from Bill of Exchange

Medium Conf.

Medium Priority

Appeared in: Paper 1 · Paper 2 · 2× total

Question types: Short: 2 | Long: 1

Kya Padhna Hai:

- 'Define 'Cheque'. Differentiate it from 'Bill of Exchange.'
- Definition of cheque and bill of exchange under Negotiable Instruments Act
- Key differences: drawer/payee/drawee roles, payable on demand vs at future date, endorsements
- Practical examples to show differences (as demanded by question)

Kaise Poochha Jaata Hai:

Definition followed by pointwise comparison; appears in both short and long sections.

Repeat Pattern:

Same distinction asked in Paper 1 and repeated wording in Paper 2 style questions.

Key Terms:

cheque

bill of exchange

demand vs time

27. Promissory Instruments cluster: parties and inter-relations (cheque, bill, promissory note)

Medium Conf.

Medium Priority

Appeared in: Paper 1 · Paper 2 · Paper 4 · 3× total

Question types: Short: 3 | Long: 2

Kya Padhna Hai:

- Questions across papers: 'Define Cheque', 'Promissory Note', 'Differentiate cheque and bill of exchange', 'rights of holder in due course'.
- Know parties for each instrument (drawer/drawee/payee/maker)
- Distinguish demand vs time instruments and negotiability features
- Remedies and holder rights across instruments as tied to multiple questions

Kaise Poochha Jaata Hai:

Clustered short answers; sometimes paper asks separate instrument definitions, sometimes comparative long answers.

Repeat Pattern:

Negotiable instrument items are grouped in multiple papers; expect bundled questions.

Key Terms:

drawer

drawee

holder in due course

28. Contingent Contract: enforcement rules

High Conf.

Medium Priority

Appeared in: Paper 1 · Paper 4 · 2× total

Question types: Short: 0 | Long: 2

Kya Padhna Hai:

- Definition of contingent contract and distinction from ordinary contracts.
- Rules on enforcement: when the contingent event happens (becomes enforceable), when the event becomes impossible or doesn't occur (void), rules for events dependent on the will of parties, and the effect of happening before/after contract formation.
- Prepare statutory points + 2–3 short examples showing enforceable vs void scenarios.
- Structure long answer: definition, rules list, illustrations, short concluding point on enforceability.

Kaise Poochha Jaata Hai:

Long-answer: 'What do you mean by Contingent Contract? Explain the rules regarding Enforcement of Contingent Contracts.' — expect detailed rule-based response with examples.

Repeat Pattern:

Explicit long question in Paper 1 and Paper 4.

Key Terms:

contingent contract

enforcement

happening of event

29. Cheque vs Bill of Exchange

High Conf.

Medium Priority

Appeared in: Paper 1 · Paper 2 · 2× total

Question types: Short: 2 | Long: 1

Kya Padhna Hai:

- Definitions of cheque and bill of exchange under Negotiable Instruments law.
- Pointwise differences: payable on demand vs at a future date, parties involved (drawee bank for cheque), endorsement/negotiation aspects, examples of usage.
- Prepare a comparative table and one example showing when an instrument will be a cheque vs a bill of exchange.
- Also note legal consequences (dishonor, holder in due course rights) briefly as they often tie to other questions.

Kaise Poochha Jaata Hai:

Comparative short or long question: define each instrument then list differences with illustrations.

Repeat Pattern:

Asked directly in Paper 1 and linked in Paper 2 through holder-in-due-course questions.

Key Terms:

cheque

bill of exchange

payable on demand

drawee bank

30. Quasi-Contract: definition & features

Medium Conf.

Medium Priority

Appeared in: Paper 2 · Paper 3 · 2× total

Question types: Short: 2 | Long: 0

Kya Padhna Hai:

- Definition: obligations imposed by law as if there were a contract (not actual contracts).
- Key features: imposed by law, no consent required, arise to prevent unjust enrichment, examples (payment by mistake, supply of necessities to incapable person).
- Prepare 3–4 illustrative examples commonly used in answers.

Kaise Poochha Jaata Hai:

Short-answer: either 'Quasi contract is not a contract in law — Explain' or 'What is Quasi-Contract? Mention its salient features.' — expect definition + features + examples.

Repeat Pattern:

Appears in both Paper 2 and Paper 3 as a short conceptual question.

Key Terms:

quasi-contract

unjust enrichment

features

31. Pledge vs Bailment

High Conf.

Medium Priority

Appeared in: Paper 2 · Paper 4 · 2× total

Question types: Short: 2 | Long: 0

Kya Padhna Hai:

- Define pledge and bailment briefly.
- Pointwise differences: purpose (security vs custody), rights of pledgee vs bailee, possession vs ownership issues, remedies available to pledgee (sale) not available to bailee.
- One short example: pledge of jewellery for loan vs bailee holding clothes for cleaning.
- Prepare a neat 6–8 point comparison for 7.5-mark answers.

Kaise Poochha Jaata Hai:

Short comparative question: 'Define pledge. How does it differ from bailment?' — expect definitions plus comparison points.

Repeat Pattern:

Explicit in Paper 2; conceptually linked in Paper 4 bailment questions.

Key Terms:

pledge

bailment

security

32. Performance of Contract: meaning and scope

Low Conf.

Low Priority

Appeared in: Paper 4 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- 'What do you understand by performance of a contract.'
- Legal meaning of performance and how performance discharges obligations
- Distinguish actual performance and attempted performance
- Instances where performance is impossible or not required (anticipatory breach context) as implied by question

Kaise Poochha Jaata Hai:

Short explanatory question expecting definition plus 2-3 illustrative points.

Repeat Pattern:

Only explicitly seen in Paper 4 but linked to other contract topics.

33. Promissory Note: definition and parties to promissory note

Low Conf.

Low Priority

Appeared in: Paper 1 · 1× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- 'What is 'Promissory Note'? Describe parties to promissory note.'
- Definition under Negotiable Instruments Act
- Parties: maker (promisor) and payee
- Distinction vis-à-vis bill and cheque when parties differ
- Common clauses in promissory notes (amount, date, unconditional promise) implied by question

Kaise Poochha Jaata Hai:

Short definition plus enumeration of parties; sometimes appears with comparative context.

Repeat Pattern:

Seen in Paper 1 and not widely repeated elsewhere in these four papers.

34. Negotiation: meaning and difference from Assignment

Low Conf.

Low Priority

Appeared in: Paper 1 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- 'What is meant by Negotiation? How is it different from Assignment?'
- Definition of negotiation (transfer of negotiable instrument) and assignment (transfer of contractual rights)
- Key differences: negotiability, formalities (endorsement), liabilities of parties
- Examples showing negotiation by endorsement vs assignment by notice

Kaise Poochha Jaata Hai:

Short comparison question; expect concise points explaining difference.

Repeat Pattern:

Only explicit in Paper 1; distinct compare-format asked.

35. Caveat Emptor: meaning and exceptions

Low Conf.

Low Priority

Appeared in: Paper 1 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- 'What do you understand by 'Caveat Emptor'? Explain the exceptions to this principle.'
- Definition of caveat emptor (buyer beware)
- List and explain common exceptions (misrepresentation, sale by sample, sale by description, fraud)
- Examples illustrating each exception as required in short answers
- Where statutory protections override caveat emptor (implied conditions/warranties)

Kaise Poochha Jaata Hai:

Short explanatory question with list of exceptions; answer in 75-200 words.

Repeat Pattern:

Appears in Paper 1 only among these four papers.

36. Rights of unpaid seller vs exceptions to seller giving better title

Low Conf.

Low Priority

Appeared in: Paper 4 · 1× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- 'No Seller of goods can give the buyer of goods a better title to those goods than what he himself Possesses.'
- Examine the statement and mention whether there are any exceptions to this rule.'
- Rule of nemo dat quod non habet and statutory exceptions (seller in possession by buyer's consent, mercantile agent, sale by seller's buyer)
- Examples of exceptions (seller in possession after sale but had voidable title, sale under deceit)
- Connect to unpaid seller rights where appropriate

Kaise Poochha Jaata Hai:

Long-answer examination with statute-based exceptions and illustrative examples; 15-mark depth expected.

Repeat Pattern:

This exact seller-title-exceptions question appears in Paper 4 as a 15-mark option.

37. Cheque v Bill of Exchange: practical difference and examples

Low Conf.

Low Priority

Appeared in: Paper 1 · 1× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- 'Differentiate cheque from bill of exchange' (paper wording).
- Practical differences: drawer/drawee/payee roles, payable on demand vs at sight, statutory definitions
- Examples showing when an instrument qualifies as cheque vs bill
- Effects on rights (holder in due course) as implied by other questions

Kaise Poochha Jaata Hai:

Comparative short or long question; expect pointwise differences with examples.

Repeat Pattern:

Explicitly in Paper 1; theme recurs in negotiable instrument cluster.

38. Caveat Emptor: exceptions

Medium Conf.

Low Priority

Appeared in: Paper 1 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- Definition: 'Caveat emptor' (buyer beware).
- Common exceptions tested: misrepresentation/fraud, sale by description vs sample, latent defects, seller's duty to disclose, statutory implied conditions that override caveat emptor.
- Prepare 3–4 short examples showing each exception (e.g., sale by sample: goods not corresponding to sample).
- Keep statutory references brief (Sale of Goods Act implied conditions) to show linkage in answers.

Kaise Poochha Jaata Hai:

Short-answer: 'What do you understand by Caveat Emptor? Explain the exceptions to this principle.' — define and list exceptions concisely within 75-200 words.

Repeat Pattern:

Appears as a standalone short question in Paper 1; not widely repeated in other papers.

39. Negotiation vs Assignment

Medium Conf.

Low Priority

Appeared in: Paper 1 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- Definition of negotiation (transfer of negotiable instrument by endorsement/transfer) and assignment (transfer of contractual rights).
- Key differences: negotiability, formalities (endorsement/possession for negotiation), rights acquired (holder in due course protections not available in assignment), liabilities of parties.
- Memorize 4–5 pointwise differences and one short example (endorsement of a cheque vs assignment of contract receivable).

Kaise Poochha Jaata Hai:

Direct compare question: 'What is meant by Negotiation? How is it different from Assignment?' — expect concise definition + pointwise differences in 75–200 words.

Repeat Pattern:

Seen in Paper 1; usually asked as a short comparison.

40. Promissory Note: parties

High Conf.

Low Priority

Appeared in: Paper 1 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- Definition of promissory note (unconditional promise in writing to pay a certain sum).
- Identify parties: maker (who promises to pay) and payee (to whom payment is to be made). Note endorsement/negotiation possibilities if payable to order.
- Typical contents: amount, date, signature — these basics answer short questions succinctly.
- Prepare a 2–3 sentence template definition and party explanation for 3-mark answers.

Kaise Poochha Jaata Hai:

Short-answer: 'What is Promissory Note? Describe parties to promissory note.' — definition + parties (maker/ payee) expected.

Repeat Pattern:

Explicit in Paper 1; instrument-related questions often cluster with cheque/bill distinctions.

Related Topic Pairs

Yeh topics exam mein aksar ek saath poochhe jaate hain — inhe milake padho.

1. Bailment: essential elements <-> Pledge: definition and differences from bailment — frequently paired for compare/contrast questions

2. Negotiable Instrument: characteristics <-> Holder in Due Course: rights — often tested together to show effect of characteristics on holder rights

3. Condition vs Warranty & implied conditions <-> 'No seller can give better title' exceptions — sale of goods topics combined for title/implied terms questions

4. Contract definition & essentials <-> Consideration: unlawful consideration — essentials questions often require discussion of consideration specifically

Apni Strategy Chuno

Pick your goal — here's exactly which topics to study based on past paper patterns.

□ *Bas Pass Hona Hai*

Just want to pass — 16 of 40 topics · ~52% marks coverage

1. Contract: definition and essentials of a valid contract
2. Limited Liability Partnership: definition, eligibility & relationship of partners
3. Consideration: definition and unlawful consideration
4. Bailment: definition and essential elements
5. Contract of Guarantee: definition and illustration
6. Sale of Goods: 'condition' vs 'warranty' and implied conditions
7. Negotiable Instrument: definition and characteristics
8. Bailment: essential elements
9. Condition vs Warranty & implied conditions in sale of goods
10. Limited Liability Partnership: eligibility & relationship
11. Consideration: unlawful consideration
12. Offer: how an offer is made
13. Essentials / Characteristics of a valid contract
14. Holder in Due Course rights (negotiable instruments)
15. Offer: formation
16. Definition of Law and Indian Contract Act

□ Average Score Chahiye

Decent score — 31 of 40 topics · ~89% marks coverage

1. Contract: definition and essentials of a valid contract
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3. Consideration: definition and unlawful consideration
4. Bailment: definition and essential elements
5. Contract of Guarantee: definition and illustration
6. Sale of Goods: 'condition' vs 'warranty' and implied conditions
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11. Consideration: unlawful consideration
12. Offer: how an offer is made
13. Essentials / Characteristics of a valid contract
14. Holder in Due Course rights (negotiable instruments)
15. Offer: formation
16. Definition of Law and Indian Contract Act
17. Quasi-Contract: definition and salient features
18. Promissory Instruments cluster: parties and inter-relations (cheque, bill, promissory note)
19. Acceptance: revocation and time limits
20. Void Contract: reasons and examples
21. Contingent Contract: definition and enforcement rules
22. Pledge: definition and differences from bailment
23. Contract of Indemnity: definition and important features
24. Goods under Sale of Goods Act: definition & classification
25. Unpaid Seller: definition and rights
26. Holder in Due Course: rights of holder in due course
27. Cheque: definition and distinction from Bill of Exchange
28. Contingent Contract: enforcement rules
29. Cheque vs Bill of Exchange
30. Quasi-Contract: definition & features
31. Pledge vs Bailment

▣ Top Karna Hai

Full coverage — all 40 topics · 100% marks coverage

1. Contract: definition and essentials of a valid contract
2. Limited Liability Partnership: definition, eligibility & relationship of partners
3. Consideration: definition and unlawful consideration
4. Bailment: definition and essential elements
5. Contract of Guarantee: definition and illustration
6. Sale of Goods: 'condition' vs 'warranty' and implied conditions
7. Negotiable Instrument: definition and characteristics
8. Bailment: essential elements
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28. Contingent Contract: enforcement rules
29. Cheque vs Bill of Exchange
30. Quasi-Contract: definition & features
31. Pledge vs Bailment
32. Performance of Contract: meaning and scope
33. Promissory Note: definition and parties to promissory note
34. Negotiation: meaning and difference from Assignment
35. Caveat Emptor: meaning and exceptions
36. Rights of unpaid seller vs exceptions to seller giving better title
37. Cheque v Bill of Exchange: practical difference and examples
38. Caveat Emptor: exceptions
39. Negotiation vs Assignment
40. Promissory Note: parties

Overall Exam Strategy

Bas Pass Hona Hai: Focus on precise statutory definitions + 3–5 pointwise lists (essentials, rights, exceptions) for the high-frequency topics added above. Learn one short example per topic and a 75–200 word template for each short question and a 200+ word structure for 15-mark questions.

